

DPDP Applicable Acts

- ***Applicable Sections (DPDP, 2023)*:**

1. ****Section 3 - Definitions****: Specifically, the definitions of "personal data", "data principal", "data fiduciary", and "processing" are relevant.

2. ****Section 10 - Rights of Data Principals****: The rights of data principals, including the right to access, correction, and erasure of personal data.

3. ****Section 11 - Obligations of Data Fiduciaries****: The obligations of data fiduciaries, including the duty to maintain confidentiality, security, and accountability in processing personal data.

4. ****Section 15 - Data Protection Impact Assessment****: The requirement for data fiduciaries to conduct a data protection impact assessment for certain types of processing.

5. ****Section 25 - Penalties for Non-Compliance****: The penalties for non-compliance with the Act, including fines and other consequences.

- ***Interpretation and Legal Analysis***:

The Digital Personal Data Protection (DPDP) Act, 2023 governs the processing of personal data in India. In this scenario, Paytm, as a data fiduciary, is processing your personal data, including personal identification information. The Act applies to all processing of personal data that takes place in India, regardless of whether it is collected in digital or non-digital form.

As a data principal, you have the right to access, correction, and erasure of your personal data under ****Section 10****. If your personal identification information is available on public platforms without your consent, it is a breach of your rights under the Act.

Paytm, as a data fiduciary, has obligations under ****Section 11**** to maintain confidentiality, security, and accountability in processing your personal data. Selling your data to another company without your consent may be considered a breach of these obligations.

- ***Section 15*** requires data fiduciaries to conduct a data protection impact assessment for certain types of processing that may pose a risk to the rights and interests of data principals. If Paytm has not conducted such an assessment, it may be considered a non-compliance with the Act.

- ***Pros***:

- As a data principal, you have the right to access, correction, and erasure of your personal data.

- You have the right to object to the processing of your personal data if it is not in line with the Act.
- The Act provides for penalties for non-compliance, which may serve as a deterrent for data fiduciaries like Paytm.

- ***Cons*:**

- As a data fiduciary, Paytm may face penalties for non-compliance with the Act, including fines and other consequences under ****Section 25****.
- Paytm may need to implement additional measures to ensure compliance with the Act, which may increase its operational costs.

- ***Procedural Notes*:**

If you wish to file a complaint against Paytm for non-compliance with the Act, you may do so with the Data Protection Board of India, established under ****Section 20****. The Board may investigate your complaint and impose penalties on Paytm if it finds non-compliance.

To file a complaint, you may need to provide documentation and evidence of the non-compliance, including:

- Proof of your personal data being processed by Paytm
- Evidence of your personal identification information being available on public platforms without your consent
- Details of the harm or damage caused to you due to the non-compliance

The Data Protection Board of India may also conduct audits and inspections to ensure compliance with the Act. If Paytm is found to be non-compliant, it may face penalties, including fines and other consequences.